

File No.: EXP202208989

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 27, 2022. The complaint is directed against Ms. B.B.B. with NIF ***NIF.1 (hereinafter, the defendant), for the installation of a video surveillance system located at ***ADDRESS.1, TEGUESTE, SANTA CRUZ DE TENERIFE, with indications of a possible breach of the provisions of Article 5.1.c) of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complainant states that the defendant resides in the dwelling located above the property where the complainant has his dwelling, on the lower floor, and that the defendant has installed a video surveillance camera that is directed at the private entrance to the complainant's dwelling and to the public road, without having authorization for it.

The complainant provides images of the location of the camera, behind a glass of the defendant's dwelling, oriented outward, as well as an image of the areas affected by the orientation of the camera.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the defendant for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on September 9, 2022, as stated in the acknowledgment of receipt in the file.

No response has been received to this forwarding, despite having been delivered on September 9, 2022, at the address where the camera subject to this complaint is installed, according to the delivery certification in the file.

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THIRD: On October 27, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On January 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the defendant, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and the defendant submitted a written statement in which, in summary, stated that: "A camera was installed at the indicated address. However, it should be noted that this camera was never operational, accompanying this written statement as DOCUMENT NUMBER ONE the sworn declaration and responsible statement of this reality.

For this reason, there has never been any obligation regarding data processing because no images were recorded or reproduced. Therefore, since there are no data to process, no regulations can be breached in this regard. Furthermore, the camera has not been installed for a long time before receiving the initiation agreement of this sanctioning procedure."

"I DECLARE RESPONSIBLY

FIRST: That the video surveillance camera installed at my home, as indicated above, was not only not in use but was fictitious and has been removed long before the initiation of the Sanctioning Procedure Agreement No. EXP202208989.

Therefore, I declare, under my responsibility, that the indicated camera did not allow for the viewing or recording of images. In any case, I commit to not making future use of it that would allow for the processing of personal data."

SIXTH: On June 6, 2023, a resolution proposal was made, proposing to the Director of the Spanish Agency for Data Protection the filing of the complaint filed against Ms. B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

The resolution proposal was notified on June 6, 2023, and after the period granted for allegations had elapsed, no allegations were submitted regarding said proposal.

From the actions carried out in this procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

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FIRST: The claimant states that the respondent resides in the dwelling located on the upper part of the property where the claimant has their dwelling on the lower floor, and that the respondent has installed a surveillance camera that is directed at the private entrance to the claimant's dwelling and the public road, without having authorization for this.

The claimant provides images of the camera's location, behind a glass of the respondent's dwelling, facing outward, as well as an image of the areas affected by the camera's orientation.

SECOND: The respondent alleges that a camera was installed at the indicated address, but that camera was never operational. No images were recorded or reproduced. The camera has not been installed for a long time before receiving the initiation agreement of the present sanctioning procedure. Its placement would not have allowed the viewing of any neighboring property nor would it have reached the public road; it also did not capture any community space, with the only viewable space being that of their own property.

The respondent responsibly declares that the surveillance camera installed at their home was not only not in use, but was fictitious and has been removed long before the initiation of the Sanctioning Procedure Agreement. The indicated camera did not allow for the viewing or recording of images. The respondent commits to not making future use of it that would allow for the processing of personal data.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to Allegations

In response to the allegations presented by the respondent, the following should be noted:

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After examining the allegations of the respondent, these allegations are accepted, as there are no rational indications of the existence of an infringement, since the camera that could record the private entrance to the claimant's dwelling and the public road was fictitious, did not record, and has been removed before the notification of the Agreement to Initiate this sanctioning procedure.

It can be concluded that we are faced with the impossibility of imputing an administrative infringement when it has not been proven, through evidence, that the cameras recorded the claimant's property and the public road, thus leading to the case being archived.

III

Presumption of Innocence

The principle of the presumption of innocence prevents the imposition of an administrative infringement when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact obliges, in any case, to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must prevail without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi*, in its various manifestations, is conditioned on the evidence and on a contradictory procedure in which the parties can defend their positions. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

The presumption of innocence prevails without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TC 13/1981), as the exercise of the sanctioning right, in any of its manifestations, is conditioned on the evidence and on a contradictory procedure in which the parties can defend their positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TC Auto 3-12-81).

IV

Conclusion

In accordance with the above, it has not been proven that the public road or the claimant's property is being recorded.

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Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of the present procedure, as no administrative infringement has been established within the framework of the current regulations on data protection.

SECOND: TO NOTIFY this resolution to Ms. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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